

HCS HBs 2387 & 2480 -- ELECTIONS

SPONSOR: Banderman

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Elections by a vote of 10 to 2 with 1 member voting present. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 8 to 4.

The following is a summary of the House Committee Substitute for HBs 2387 & 2480.

This bill reinstates the presidential preference primary election, to be held on the first Tuesday in March of each presidential election year.

A person who files to be included on the presidential primary ballot is not prohibited from filing as a party candidate for nomination to another office.

Specific deadlines for administrative actions by local election authorities and the Secretary of State that are necessary to hold the presidential preference primary are specified in the bill.

Candidates will be required to pay a filing fee to the state committee of the established political party on whose ballot they wish to appear. The amount of the fee will be determined by the state committee of each political party.

The conduct of the presidential preference primary and the count and canvass of the votes cast must conform as nearly as possible to that prescribed for the primary election for state officers.

All costs of the presidential preference primary, except for proportional costs for any political subdivision or special district holding an election on the same day, will be paid by the State.

The results of the presidential preference primary will be binding for the purpose of allocating and directing the votes of party delegates and alternate delegates. The political parties must allocate delegates in proportion to the certified statewide and congressional district results of the election, unless a national party rule requires an alternative allocation method, in which case the allocation must conform as nearly as possible to the election results.

Delegates will file a written pledge with the Secretary of State affirming that they will vote for the candidate to whom they are bound under for at least the first ballot. A delegate who fails to give or violates the pledge will be deemed to have resigned immediately. An alternate delegate pledged to the same candidate will fill the vacancy.

The Secretary of State must certify the results of the presidential preference primary and is authorized to promulgate rules to implement the provisions of this bill.

This bill is similar to HB 367 (2025).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that the ability to participate in a presidential primary is a bipartisan concern among voters. Voter participation is a vital aspect of the health of the government. More people being involved is better for democracy and better for the candidates. The caucus system excludes from the process of candidate selection a lot of important groups who have busy schedules or trouble getting around. Caucus participation was less than 10% of the voter turnout of the last presidential primary. Moving the date of the primary will give Missouri more influence in the selection process and is a great way to get the attention of national candidates. Expanding the no-excuse in-person absentee voting will lead to safer and more secure elections.

Testifying in person for the bill were Representative Banderman; Missouri Farm Bureau; American Civil Liberties Union - Missouri; Mike Haffner, Missouri Republican Party; Russ Carnahan, Mo Democratic Party; Arnie Dienoff; Denise Lieberman, Missouri Voter Protection Coalition; and Miles Ross, Missouri Republican Party.

OPPONENTS: Those who oppose the bill expressed concerns about modifications to the absentee voting period. There were concerns that lengthening the no-excuse in-person absentee voting period would make elections less secure, and logistical concerns about shortening the overall absentee voting period. Concerns were also expressed about the cost of a statewide election, the results of which are not binding. \$9,000,000 is an exorbitant cost for a state run public opinion poll. Presidential candidates are selected by party run caucuses. To hold an election on this subject, the results of which do not determine

the selection of the candidates, is dishonest to voters who don't understand the process.

Testifying in person against the bill was Michael Compton, Act for Missouri; Missouri Association of County Clerks and Election Authorities.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.